

Court No. - 2

Case :- WRIT - C No. - 12750 of 2010

Petitioner :- Satyaveer Singh

Respondent :- Exe. Engg. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Dr. V.N. Tripathi

Respondent Counsel :- C.S.C., Pankaj Kr. Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Singh, J.

Heard, learned counsel for the petitioner.

By this petition, petitioner has prayed for a mandamus directing the respondents no.1 and 2 to make a survey and physical verification of the tube well site and surrounding locality so as to ascertain the existence or non existence of electric poles, insulators, transformer and other installations relating to impugned electric connection no.53/775 in the name of the petitioner.

Learned counsel for the respondents submits that with regard to the connection in question which was energised on 01/2/1997 in which dues and recovery has also been initiated. Learned counsel for the petitioner submits that the connection itself is not existing which should be ascertained by physical verification. We are of the view that the writ proceedings are not the appropriate proceedings for the relief as claimed in the writ petition. It shall be open for the petitioner to seek relief as provided under the U.P. Electricity Supply Code, 2005. The petitioner may seek remedy in accordance with the U.P. Electricity Supply Code, 2005.

With the aforesaid observation writ petition stands dismissed.

Order Date :- 16.3.2010

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